

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
BARTOLO SANTIAGO-PEREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. XINPING HUANG
(Shield #25338), P.O. MICHAEL GUGLIELMI
(Shield # unknown), P.O. JOSE BELTRAN
(Shield # unknown), P.O. CHRISTOPHER HARTE
(Shield #unknown), SGT. VINCETA GISHARD
(Shield #unknown), P.O. MARIO RODRIGUEZ
(Shield #unknown), P.O. STEPHEN PATTI
(Shield #unknown), P.O. ALEXIS RICE
(Shield #unknown), P.O. MICHAEL SISINNI
(Shield #unknown), P.O. JENNIFER PERDOMO
(Shield # unknown)Defendants.
-----X

Index No:

Date filed:

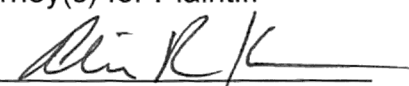
Plaintiff designates
NEW YORK County
As Place of Trial**SUMMONS**The basis of venue is
Place of IncidentPlaintiff's residence
605 FDR Drive
New York, NY

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
March 17, 2022

Yours etc.

BURNS & HARRIS, ESQS.
Attorney(s) for PlaintiffBy: ALISON R. KEENAN
233 Broadway, Suite 900
New York, NY 10279
(212) 393-1000

TO:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. XINPING HUANG (Shield #25338
P.O. MICHAEL GUGLIELMI (Shield # unknown),
P.O. JOSE BELTRAN (Shield # unknown),
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P.O. ALEXIS RICE (Shield #unknown),
P.O. MICHAEL SISINNI (Shield #unknown),
P.O. JENNIFER PERDOMO (Shield # unknown
c/o 7th Precinct
19 ½ Pitt Street
New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----x
BARTOLO SANTIAGO-PEREZ,

Plaintiff,

-against-

Index No.:

**VERIFIED
COMPLAINT**THE CITY OF NEW YORK,
P.O. XINPING HUANG (Shield #25338),
P.O. MICHAEL GUGLIELMI (Shield # unknown),
P.O. JOSE BELTRAN (Shield # unknown),
P.O. CHRISTOPHER HARTE (Shield #unknown),
SGT. VINCETA GISHARD (Shield #unknown),
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P.O. MICHAEL SISINNI (Shield #unknown),
P.O. JENNIFER PERDOMO (Shield # unknown)Defendants.
-----x

Plaintiff, BARTOLO SANTIAGO-PEREZ, by his attorneys, BURNS & HARRIS, ESQS., complaining of defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. BARTOLO SANTIAGO-PEREZ brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and Constitutions of the State of New York and the United States, including the Fourth, Fifth and Fourteenth Amendments.

2. This action arises from shameful, vicious and cruel acts of police brutality and unlawful search/seizure, by The City of New York, its agents, servants and/or employees, perpetrated against BARTOLO SANTIAGO-PEREZ, and The

City of New York, its agents, servants and/or employees', desperate attempt to cover it up.

3. This action seeks compensation for the unconstitutional and tortuous acts of police officers who savagely beat BARTOLO SANTIAGO-PEREZ and unlawfully/illegally searched, police officers who witnessed or were aware of said savage beating and illegal search/seizure, yet failed to report what they knew, who willfully participated in covering up said savage beating and/or illegal search and/or seizure coerced and/or manufactured evidence and/or statements of illegal crimes to cover-up and/or justify actions of police officers thereby creating a "blue wall" of silence and lies to obstruct justice and prevent the truth from surfacing, and police officers who failed to control subordinates with a history of abusive behavior. Ultimately, BARTOLO SANTIAGO-PEREZ seeks redress against The City of New York, its agents, servants and/or employees, for their deliberate indifference with respect to customs, policies and practices that permitted, condoned and preserved a "code of silence" environment, in which most violent police officers believed they would be insulated from swift and effective investigation, prosecution and conviction for even their most brazen acts of brutality. The inevitable result of this institutional indifference is the extraordinary injuries inflicted upon BARTOLO SANTIAGO-PEREZ.

SHORT STATEMENT OF FACTS

4. During the morning of April 17, 2021, Mr. Santiago-Perez was outside his apartment at or near Mangin Street and East Houston Street, County of New York, City and State of New York, with his girlfriend, when The New York City police

officers unlawfully assaulted, battered, handcuffed and placed him in a patrol car. Mr. Santiago-Perez had not committed any criminal offense. While handcuffed, The New York City police officers attacked, assaulted, battered, slammed Mr. Santiago-Perez and broke his arm in multiple places.

5. While being detained, due to his obvious injuries and his desperate, repeated pleas for medical assistance he was nonetheless placed in handcuffs and arrested to coverup and/or attempt to justify excessive force, assault and battery by police officers. During that time, no police officer or supervisory personnel at the precinct or on scene, despite being aware of Mr. Santiago-Perez's injuries, took appropriate action to investigate and report the use of excessive force. Instead, they ran Mr. Santiago-Perez through the criminal justice system and falsely charged him with various criminal offenses they knew or should have known that he did not commit. As a result, Mr. Santiago-Perez spent unlawfully over 24 hours in custody.

6. After posting bail, Mr. Santiago-Perez underwent surgery to repair several fractured bones in his arm. The false criminal charges levied against him were ultimately dismissed on October 22, 2021.

7. The cover up of Mr. Santiago-Perez's savage attack began as he was being beaten by The New York City police officers and spread quickly to The 7th Police Precinct and other New York City police personnel at said precinct. Defendant police officers were engaged in a joint venture and formed an agreement to violate Mr. Santiago-Perez's rights. The individual defendant police officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during

said events. They failed to intervene in the obviously illegal actions of their fellow officers against Mr. Santiago-Perez.

8. Ultimate responsibility for the horrific events on April 17, 2021 and their aftermath, rests with The City of New York. It has encouraged the "code of silence" or "blue wall." The policies, customs and practices of The New York City Police Department have promoted an atmosphere in which the very worst police officers feel assured that evidence of misdeeds depriving citizens of their civil rights, no matter how awful, will be hidden by The City of New York and the "code of silence." With the imposition of punitive damages against all defendants, Mr. Santiago-Perez hopes to deter defendants and bring an end to this intolerable cycle of violence and silence.

THE PARTIES

9. Plaintiff, BARTOLO SANTIAGO-PEREZ, was and is at all relevant times a resident of the County of New York, City and State of New York.

10. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

11. Defendant THE CITY OF NEW YORK maintains The New York City Police Department, a duly authorization public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

12. That at all times mentioned herein, the individually named defendants -- P.O. XINPING HUANG (Shield #25338), P.O. MICHAEL GUGLIELMI (Shield # unknown), P.O. JOSE BELTRAN (Shield # unknown), P.O. CHRISTOPHER HARTE (Shield #unknown), SGT. VINCETA GISHARD (Shield #unknown), P.O. MARIO RODRIGUEZ (Shield #unknown), P.O. STEPHEN PATTI (Shield #unknown), P.O. ALEXIS RICE (Shield #unknown), P.O. MICHAEL SISINNI (Shield #unknown), and P.O. JENNIFER PERDOMO were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

13. That at all times mentioned herein, the individually named defendants --P.O. XINPING HUANG (Shield #25338), P.O. MICHAEL GUGLIELMI (Shield # unknown), P.O. JOSE BELTRAN (Shield # unknown), P.O. CHRISTOPHER HARTE (Shield #unknown), SGT. VINCETA GISHARD (Shield #unknown), P.O. MARIO RODRIGUEZ (Shield #unknown), P.O. STEPHEN PATTI (Shield #unknown), P.O. ALEXIS RICE (Shield #unknown), P.O. MICHAEL SISINNI (Shield #unknown), and P.O. JENNIFER PERDOMO - are sued in their individual capacities.

14. That at all times mentioned herein, defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

15. Each and all of the acts of the individually named defendants alleged herein were done by said defendants while acting within the scope of their employment for defendant THE CITY OF NEW YORK.

16. Each and all of the acts of the individually named defendants alleged herein were done by said defendants while acting in furtherance of their employment for defendant THE CITY OF NEW YORK.

17. Each and all of the acts of defendants deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

NOTICE OF CLAIM & GML § 50(H) HEARING

18. Plaintiff timely filed a Notice of Claim against The City of New York in compliance with General Municipal Law Section 50. More than 30 days have elapsed since service of said notice, and The City of New York has neglected to pay or adjust the claim. Plaintiff appeared for his General Municipal Law Section 50(h) hearing on December 22, 2021 in advance of commencing this lawsuit.

DAMAGES

19. As a direct and proximate result of defendants' acts and/or omissions, plaintiff suffered the following injuries and damages:

- a. violation of his rights pursuant to the Fourth Amendment of the United States Constitution to be free from an unreasonable search and seizure of person and property;
- b. violation of his rights pursuant to the Fourteenth Amendment of the United States Constitution to due process;
- c. life-threatening physical injuries, pain and suffering, requiring the expenditure of money for treatment expected to last the rest of his life;
- d. emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, requiring the expenditure of money for treatment expected to last the rest of his life;

- e. loss of liberty; and
- f. the physical, psychological and economic consequences of defendants' actions continue to date, and upon information and belief, will continue into the future.

CAUSES OF ACTION

FALSE ARREST & FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983 (Against Individually-Named Officer Defendants)

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "19" with the same force and effect as if fully set forth herein.

21. The individually-named officer defendants wrongfully and illegally arrested, detained and imprisoned plaintiff.

22. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent and without probable cause or reasonable suspicion.

23. At all relevant times, defendants acted forcibly in apprehending, arresting and imprisoning plaintiff.

24. Throughout this period, plaintiff was unlawfully, wrongfully and unjustifiably held under arrest, deprived of his liberty, imprisoned and falsely charged.

25. At all times, the unlawful, wrongful and false arrest/imprisonment of plaintiff was without basis and without probable cause or reasonable suspicion.

26. All of this occurred without any illegal conduct by plaintiff.

27. All criminal charges against plaintiff stemming from the subject incident were dismissed by the New York County Criminal Court.

28. The individually-named officer defendants acted under pretense and color of state law in their individual and official capacities and within the scope of their respective employment as NYPD officers. Said acts by officer defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly and with the specific intent to deprive plaintiff of his constitutional rights secured by the United States Constitution.

29. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983
(Against Individually-Named Officer Defendants)

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "29" with the same force and effect as if fully set forth herein.

31. Defendants initiated or maintained criminal prosecution against plaintiff without probable cause, in violation of his Fourth Amendment rights.

32. Defendants acted maliciously, with collateral objectives outside the legitimate ends of the legal process, in violation of his Fourth Amendment rights.

33. The aforesaid criminal prosecution terminated in plaintiff's favor.

34. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
(Against Individually-Named Officer Defendants)

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "34" with the same force and effect as if fully set forth herein.

36. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff's constitutional rights under the Fourth Amendment to the United States Constitution.

37. As a result of the foregoing, plaintiff sustained, *inter alia*, bodily injuries, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983
(Against Individually-Named Officer Defendants)

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "37" with the same force and effect as if fully set forth herein.

39. Defendants had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in defendants' presence by use of excessive force.

40. Defendants further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

41. Defendants had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in defendants' presence by falsifying evidence of probable cause to arrest plaintiff.

42. As a result of defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, physical and emotional injuries.

**DELAY AND DENIAL OF MEDICAL TREATMENT AND FAILURE TO PROTECT
WHILE IN CUSTODY UNDER 42 U.S.C. § 1983**
(Against Individually-Named Officer Defendants)

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "43" with the same force and effect as if fully set forth herein.

44. By their conduct and under color of state law, defendants deprived plaintiff of his constitutional right to immediate medical treatment and protect him once he became a prisoner, thus perpetuating and exacerbating his physical and mental pain and suffering.

RETALIATION
(Against Individually-Named Officer Defendants)

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "44" with the same force and effect as if fully set forth herein.

46. During the morning of April 17, 2021, Mr. Santiago-Perez was outside his apartment at or near Mangin Street and East Houston Street, County of New York, City and State of New York, with his girlfriend, when The New York City police officers unlawfully assaulted, battered, handcuffed and placed him in a patrol car. Mr. Santiago-Perez had not committed any criminal offense. The New York City police officers assaulted, battered and broke his arm in multiple places.

47. While being detained, due to his obvious injuries and his desperate, repeated pleas for medical assistance he was nonetheless placed in handcuffs and arrested to coverup and/or attempt to justify excessive force, assault and battery by police officers. During that time, no police officer or supervisory personnel at the precinct, despite being aware of Mr. Santiago-Perez's injuries, took appropriate action to investigate and report the use of excessive force. Instead, they ran Mr. Santiago-Perez through the criminal justice system and falsely charged with him various criminal offenses they knew or should have known that he did not commit. As a result, Mr. Santiago-Perez spent unlawfully over 24 hours in custody.

48. After posting bail, Mr. Santiago-Perez underwent surgery to repair several fractured bones in his arm. The false criminal charges levied against him were ultimately dismissed on October 22, 2021.

49. Police officers broke Mr. Santiago-Perez's arm in the arrest and the police fabricated and attempted to persuade and intimidate witnesses and others to manufacture other charges to justify the injury.

50. The cover up of Mr. Santiago-Perez's savage attack and the fabricating and attempting to persuade and intimidate witnesses and others to manufacture other charges to justify the injury began as he was being beaten by The New York City police officers while handcuffed and spread quickly to The 7th Police Precinct's supervisory personnel and other New York City police personnel at said precinct. Defendant police officers were engaged in a joint venture and formed an agreement to violate Mr. Santiago-Perez's rights. The individual defendant police officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other

during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Mr. Santiago-Perez.

MUNICIPAL AND SUPERVISORY LIABILITY
(Against Defendant The City of New York)

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs number "1" through "50" with the same force and effect as if fully set forth herein.

52. Defendant The City of New York's failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat, routine misconduct by the same officers, same units and same precincts. In 2010, The New York City paid out \$136 million¹ for the fiscal year, compared to 2009, when it paid out more than \$117 million, and 2008, when it paid \$80 million.² In the past ten years, The City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.³ More than 40% of those settlements in 2011 stem from excessive force and false arrest.

53. This widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails." Wyatt v. Cole, 504 U.S. 158, 161 (1992), citing Carey v. Piphus, 435 U.S. 247, 254-257 (1978). "As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it

¹ Bob Hennelly's WNYC report, "Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements" from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/> and June 13, 2011, "With Budget Deadline Looming, City Lawsuits Come Under Scrutiny": <http://www.wnyc.org/articles/wnyc-news/2011/jun/13/budget-deadline-looming-city-lawsuits-come-under-scrutiny/>, last visited on July 7, 2011

² Mayor Michael Bloomberg's preliminary Management Report for FY 2009, available to <http://www.nyc.gov/html/ops/downloads/pdf/mmr/nypd.pdf>, see page 115, last visited on February 18, 2010

³ "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010, last visited on December 9, 2010

is in other contexts.” See Hudson v. Michigan, 547 U.S. 586, 598 (2006), citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446 (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official paces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21 (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

54. However, The City of New York has isolated NYPD officers from accountability for its civil rights lawsuits, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expenses to The City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was “a total disconnect” between the settlements of even substantial civil claims and police department action against officers. This “total disconnect” between officers’ liability and NYPD discipline, results in a system where The City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units or precincts are disproportionately responsible for New York City civil rights lawsuits.

55. The City is liable for the damages suffered by plaintiff, in that, after learning of their employees' violations of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

56. The aforesaid event underlying plaintiff's factual allegations, was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial ruling suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, The City has permitted policies and practices that allow the aforementioned to persist.

57. The City has been alerted to the regular use of false arrests by its police officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions or dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case. In 2009, New York City saw a 46 percent jump in payouts to settle claims against the NYPD and has paid out more than \$117 million in fiscal

year 2009, compared to \$80 million in 2008.⁴ In the past ten years, The City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.⁵

58. Nevertheless, The City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision and discipline in the NYPD. The City's deliberate indifference toward the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, toward incidents repeatedly occurring in the same precinct, toward patterns of misconduct that arise in civil rights litigation, all have caused constitutional violations against plaintiff.

59. Additionally, according to a report of the New York City Bar Association issued in 2000, The City has isolated its law department from the discipline of police officers. Civil rights lawsuits against police officers have no impact on the officers' careers, regardless of the officers' lawsuit liability, even after multiple lawsuits. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was "a total disconnect" between the settlements of even substantial civil claims and police department action against officers. Nothing has changed since 1999 and the present regarding this "total disconnect" between officers' liability and NYPD discipline, resulting in a system where The City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests.

⁴ Mayor Michael Bloomberg's preliminary Management Report for FY 2009, available to <http://www.nyc.gov/html/ops/downloads/pdf/mmr/nypd.pdf>, see page 115, last visited on February 18, 2010

⁵ "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010, last visited on December 9, 2010

60. The City is also aware that the misconduct does not stop at the regular use of stop and frisks to violate the civil rights of innocent people. In 2008, more than half (51%) of summonses issued by NYPD officers were dismissed for legally insufficient evidence. Police officers have repeatedly told New York City news investigations that their supervisors pressure them into reaching “performance goals” or quotas, resulting in the violation of innocent New Yorker’s civil rights.⁶

61. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints and who received no discipline thereafter was 47%; in 2007, it was 75%.⁷ The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinary rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provides so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded since there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

62. Further, The City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total

⁶ See WABC’s Jim Hoffer’s three installments (March 3, May 23 and May 25, 2010) on NYPD quotas available at <http://abclocal.go.com/wabc/story?section=news/investigator&id=7461355> last visited May 26, 2010

⁷ The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: “Mission Failure: Civilian Review of Policing in New York City, 1994-2006”

liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

63. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations and strong disciplinary actions within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al., 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

64. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, The City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

65. Plaintiff has been damaged as a result of defendant The City of New York's deliberate indifference.

WHEREFORE, plaintiff demands judgment against defendants, jointly and severally, as follows:

- a. in favor of plaintiff in an amount exceeding the monetary jurisdictional limits of any lower Court that would otherwise have jurisdiction herein, to be determined by a jury for each of plaintiff's causes of action;
- b. awarding plaintiff punitive damages in an amount to be determined by a jury;
- c. awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- d. granting such other and further relief as this Court deems just and proper.

Dated: New York, New York
March 17, 2022

Yours, etc.

BURNS & HARRIS, ESQS.
Attorneys for Plaintiff

By:



ALISON R. KEENAN
233 Broadway, Suite 900
New York, NY 10279
(212) 393-1000

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK }
 } ss.:
COUNTY OF NEW YORK }

BARTOLO SANTIAGO-PEREZ, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY
 March 17, 2022

x 

BARTOLO SANTIAGO-PEREZ

Sworn to before me this
17th day of March, 2022



NOTARY PUBLIC

LISA CUOMO
Notary Public, State of New York
No. 01CU4910640
Qualified in Kings County
Commission Expires January 25, 2026